

21. 9:00 AM CASE NUMBER: C25-01135
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KSL ASSOCIATE GROUP, INC.
TENTATIVE RULING:

Defendant KSL Associate Group, Inc. moves to compel arbitration of plaintiff's individual claims, strike the class claims, and stay proceedings pending the outcome of the arbitration.

Plaintiff has filed a notice of non-opposition to defendant's motion to compel arbitration.

The motion is unopposed. It is, therefore, granted.

22. 9:00 AM CASE NUMBER: C25-01877
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KSL ASSOCIATE GROUP, INC.
TENTATIVE RULING:

Defendant KSL Associate Group, Inc. moves to compel arbitration of plaintiff's individual claims and stay the representative PAGA proceedings pending the outcome of the arbitration.

Plaintiff has filed a notice of non-opposition to defendant's motion to compel arbitration.

The motion is unopposed. It is, therefore, granted.

23. 9:00 AM CASE NUMBER: N26-0851
CASE NAME: PETITION OF:LVNV ASSISTANCE, LLC
HEARING IN RE: INITIAL PETITION FILED
FILED BY: LVNV ASSISTANCE, LLC
TENTATIVE RULING:

This is an application by LVNV Assistance, LLC to approval of a transfer of structured settlement payment rights.

The application is essentially boilerplate and provides little or no information about the merits of the specific proposed transfer.

There is no proof of service, so the Court does not know who has been notified of this filing.

Most of the information on the forms attached to the petition is redacted. Although the Petition says "A true and correct copy of the proposed Transfer Agreement will be filed subsequently hereto" it has not been filed..

There is no information about who received what information (other, perhaps, than "E.H.")

There is little evidence of compliance with Insurance Code Section 10139.5(f); only conclusory statements.

There is hardly any substantive information about the proposed transfer. Thus, the Court is unable to evaluate "whether the transfer is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Insurance Code, Sec. 10137. Likewise, the Court is unable to determine if the requirements of Insurance Code Section 10134 et seq. Have been met.

The application is denied without prejudice to submission of a proper application for an order approving the transfer.

Discovery Law & Motion

24. 9:01 AM CASE NUMBER: C24-02882

CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FOR DEFENDANTS' FORM INTERROGATORIES AND SPECIAL INTERROGATORIES**

FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED

TENTATIVE RULING:

This is defendant's motion to compel further responses to 55 special interrogatories and one form interrogatory (set one). It is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion